

25STCV04873 25STCV04873

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25STCV04873

Nadea M. McPherson v. Volkswagen Group of America, Inc., et al.

Tuesday,

July 21, 2026

[TENTATIVE] ORDER GRANTING DEFENDANTS, VOLKSWAGEN GROUP OF AMERICA, INC. AND AUDI BEVERLY HILLS', MOTION TO COMPEL PLAINTIFF, NADEA M. MCPHERSON'S, ATTENDANCE AT DEPOSITION AND PRODUCTION OF DOCUMENTS; REQUEST FOR MONETARY SANCTIONS (0317)

I. BACKGROUND

The

complaint alleges that Defendants violated a warranty contract relating to a 2020 Audi Q3 Quattro in violation of the Song Beverly Consumer Warranty Act.

Defendants

move to compel Plaintiff to appear for deposition and produce documents described in the deposition notice. Defendants' contend that Plaintiff fails to respond to efforts to meet and confer and provide dates for deposition. Defendants also request an order imposing sanction.

II. LEGAL STANDARDS

When

a deponent fails to appear for or proceed with a deposition or produce documents without having served a valid objection, the moving party can move to

compel the deponent's appearance and to produce documents. (Code Civ. Proc., § 2025.450 subd. (b)(2).) The moving party must submit a declaration attesting that the parties met and conferred prior to filing the motion. (Id.)

III. DISCUSSION

Defendants

first served a deposition notice on May 19, 2025, setting the deposition for July 10, 2025. (Cochran decl., ¶ 4.) Defendants contend they made numerous discovery communications, however, Plaintiff failed to confirm dates for deposition. (Id. ¶ 5.)

Defendants

served a second deposition notice on February 17, 2026. (Id. Ex. B.) Plaintiff objected because the deposition had been unilaterally set and Plaintiff was not available. Plaintiff did not provide alternate deposition dates. (Id. ¶ 8.)

Defendants

called on May 13, 2026, and May 14, 2026, to meet and confer regarding the deposition and vehicle inspection, but was not able to reach Plaintiff, nor did Plaintiff return the call. Defendants sent a letter on May 13, 2026, requesting a meet and confer and to confirm dates for the deposition and vehicle inspection. (Id. ¶ 15.)

The

evidence demonstrates that Plaintiff confirmed availability on June 15, 2026. (Abdo decl., ¶ 6, Ex. 2.) Plaintiff twice emailed and offered dates of June 29, 2026, June 30, 2026, and July 1, 2026. As Defendant observes, these attempts were made after Defendants filed this motion on May 14, 2026. Plaintiff argues that Defendants did not meet and confer prior to filing this motion. The evidence shows that defense counsel twice attempted to meet and confer before filing the motion. Plaintiff's counsel does not explain the failure to respond until after Defendants filed this motion. Plaintiff sent an email on June 11, 2026 offering dates. (Abdo decl., ¶ 5.)

Plaintiff

has not shown substantial justification for failing to respond to Defendants' efforts to schedule a deposition. Defendants are entitled to imposition of sanctions against Plaintiff and Plaintiff's counsel of record in the amount of

\$1,580 (\$395/hour x 4 hours) for reasonable fees incurred and costs of \$60.

IV. CONCLUSION

Based

on the foregoing, Defendants' motion is GRANTED. Plaintiff is ordered to appear for deposition and produce documents within 10 days as Defendants requested. Plaintiff and counsel, Strategic Legal Practices, APC, jointly and severally, are ordered to pay \$1,640 to Defendants within 10 days.